

The Claremont City Council held a meeting on Wednesday, March 8, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Assistant Mayor Bergeron at 6:30 p.m.

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Assistant Mayor Victor Bergeron
At-Large Councilor Allen Damren
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski

Absent:

Mayor Charlene Lovett
At-Large Councilor John Simonds

Also present were:

Ryan McNutt, City Manager
Jane Taylor, City Solicitor

AGENDA CHANGES

Mr. Bergeron said the Preservation and Display of Historical Claremont Artifacts Discussion would be moved to the 3/22 agenda.

REPORT OF THE SECRETARY

A motion was made by Mr. Koloski and seconded by Mr. Damren to accept the minutes of the February 15, 2017, City Council meeting.

Mr. Bergeron abstained as he was not at that meeting.

Voice vote: motion carried 6-0 with 1 abstain (Mr. Bergeron).

A motion was made by Mr. Pope and seconded by Mr. Koloski to accept the minutes of the February 22, 2017, City Council meeting.

Ms. Towle and Mr. Raymond abstained as they were not at that meeting.

Voice vote: motion carried 5-0 with 2 abstain (Ms. Towle and Mr. Raymond).

MAYOR'S NOTES

Mr. Bergeron read a list of notes from Mayor Lovett:

- The next joint meeting of the Council and School Board would be next Thursday, March 30th, 6 p.m.
- Mayor Lovett had omitted a letter by mistake from the last meeting, so Mr. Bergeron read Vin and Arlene Hawkins' letter regarding naming the Pedestrian Bridge for Guy Santagate. They are in favor.
- The process of naming City-owned property has been referred to the Policy Committee.
- The EPA will hold a Floodplain meeting on March 9th.
- The Amtrak Ad Hoc Committee will hold a meeting on April 11th to discuss long term goals and to discuss development of the Junction area.
- HB413 is now at Division 1 of the House Finance Committee. Mayor Lovett forwarded a letter she drafted on behalf of the Council and School Board to Division 1 and she requested everyone reach out to members of this Committee.
- Mayor Lovett invited Southwestern Community Services to provide an update to the Council regarding public transportation on April 26th.
- Regarding spring cleanup, she briefed the City Manager on some recent initiatives. She asked the Council to consider proclaiming April as Spring Cleanup Month
- An update of funding for lead screening and prevention will be presented at the next Council/School Board meeting.

Mr. Bergeron reminded everyone to vote next Tuesday on the school budget and Charter amendments.

Mr. Damren said the Stevens High School basketball team was playing in the Division playoffs tonight and he wished them good luck.

Mr. Damren asked the Councilors to put together a team for the May 6th Steppin' Up to End Violence Walk.

Ms. Towle gave a shoutout to Chuck Allen, Arrowhead Recreation Club and all who participated in cardboard sled race. It was a lot of fun.

CITY MANAGER'S REPORT

Mr. McNutt said yesterday he walked through Stevens High School with Assistant Superintendent Corey LeClair and he reported that it is an absolutely beautiful high school. He thinks more opportunities should be given to Claremonters to see the school.

Mr. McNutt said an agreement has been made with the outside contractor who runs the water and wastewater plants to extend the current contract for one year at a 2% reduction (\$20,000 less).

Mr. McNutt said April 22nd is Earth Day and it will be Tire Day at the Transfer Station. Citizens can drop off tires that are less than 20 inches at the Transfer Station for free. He talked about doing a community-wide clean up in Claremont during April. Each week the focus would be on a different section of the City. He suggested the City may fund rolloff dumpsters or trash bags for the events. He's willing to be part of the cleanup and suggested that a different group of volunteers would go out each week. He suggested Councilors also participate.

Mr. McNutt said tonight was the semi-finals for the Stevens High School basketball team. Public Works Director Scott Sweet's son is on the team. He wished them good luck.

Mr. McNutt said from November to the present, Public Works has spent \$649,960 on storm responses which is 97% of their winter budget. They have done a good job keeping the roads clear and safe. 420 fire hydrants have been kept clear. He thanked the Fire Department, Public Works and citizens who clear the snow from around the fire hydrants.

Mr. McNutt said New Hampshire will get \$30 million from Volkswagen as part of a settlement for illegally tampering with emission controls. Claremont will send in a request for funding for new Public Works vehicles; they might use hybrid fuel/use cleaner technology.

Mr. McNutt said 981 out of 1,000 street lights have been converted to LED. He asked if anyone sees a light on during the daytime or if they do not come on at night to let Public Works know.

Mr. McNutt said the wastewater treatment plant is the largest electric user in Claremont government, 70,000 kwh per month. An RFP (request for proposal) will go out to put a solar array at the plant in order to reduce electricity usage.

Mr. McNutt talked about lead-based paint in homes and that the goal is to test 100% of children under 6 years old.

Mr. Bergeron suggested putting cleaning up the neighborhoods on the next agenda.

Mr. Pope suggested contacting Michele Pierce who is a member of the Heart of Claremont group to help.

Mr. Temple asked about paying the wastewater plant electric bill. Mary Walter, Finance Director, said the City bills the operators for it.

APPOINTMENT TO BOARDS AND COMMITTEES

Airport Advisory Board

A motion was made by Mr. Raymond and seconded by Mr. Damren to appoint Dale R. Girard to seat 1 of the Airport Advisory Board.

Voice vote: motion carried 7-0.

CITIZEN'S FORUM

Bernie Folta, Ward 3, suggested there might be grants available from the Northern Border Regional Commission. He said next Tuesday that voters will give their opinion on the school budget, but there is no direct way for citizens to express their opinion by voting up or down on the City's budget. So, he suggested there be a survey at the polls where residents can express their opinions of which Claremont municipal operations should get more money and which should get less.

David Messier, Ward 1, said he was unable to attend the February 22nd Council meeting where naming the Pedestrian Bridge for Guy Santagate was discussed. He said when it comes time to name the bridge, the only name that it should be is Guy Santagate. If not after him, then it should not be given a name. He read excerpts of the letter he submitted at the last meeting. He said the idea of the Pedestrian Bridge was floated before Mr. Santagate arrived in Claremont, but he was the one to make it a reality.

Chuck Allen, Ward 3 resident and Arrowhead Recreation Club (ARC) member, said the Club has done many hundreds of thousands of dollars of work to Arrowhead with no cost to the City. He said the groomer, snowmaking equipment, and volunteers are the only assets of the ARC. He listed items needing repair or replacement that are beyond their means: replace 1960s single pane windows and doors, replace heating system, add air conditioner for the main floor, and repair/replace the roof. He said last year there wasn't much snow, so they had to use reserve funds to pay expenses (groomer loan payment, insurance, etc.). This year was a good one. Last week they paid the \$16,700 annual insurance payment and hope to pay down some of the groomer loan. This year they had 30 operational days, 5,223 customer visits and 5,611 volunteer hours. Arrowhead is run 100% by volunteers; they are always looking for more volunteers and donations.

Mr. Bergeron thanked Mr. Allen and his organization for all the hard work they do.

Mr. Bergeron read a proclamation declaring March as General Aviation Appreciation Month.

OLD BUSINESS

Ordinance 553 Revision to Division of Highway Authority – First Reading

The purpose of this proposed change is to clarify the authority of the Public Works Department to maintain and, if necessary, remove vegetation and trees along City streets and sidewalks. The Public Works Department has historically undertaken these tasks, but the authority to do so is not expressly delegated to the Department.

Enactment of this ordinance will clarify the authority of the Public Works Department to maintain and, if necessary, remove vegetation and trees along City streets and sidewalks.

Ms. Taylor said nothing had changed from last month when this ordinance was first presented. A copy of the Public Works Public Right-of-Way Vegetation & Tree Maintenance & Removal policy was included in the Council packet. She said when looking to revise the policy, nowhere in the ordinances is vegetation and tree maintenance and removal delegated. The Director of Public Works is the one who looks after the trees in the City's right-of-way.

A motion was made by Mr. Raymond and seconded by Mr. Damren to adopt Ordinance 553 Revision to Division of Highway Authority on first reading.

Mr. Raymond read the explanation of proposed action into the record.

Voice vote: motion carried 7-0.

REMIX Update

James Neilsen, V, Ward 3, said REMIX will be a coffee bar and social club at 1 Pleasant Street; it is nonprofit; for 18+; serving cold brew coffee. He talked about Panera Cares and its pay-it-forward model. All staff will be volunteers. They will run off donations and grants. The back portion of the area will be a resource center. They will collaborate with Connect Center and Shining Success. They will have an after school "study hall" with free wi-fi. They plan to share the space with the community. He said this is faith-based, but they won't be preaching. It will be open to all. The launch is expected to be May 12, 6-10 p.m. with a special guest, David Boudia.

Mr. McNutt said he had been looking for a venue so that people can connect with the City Manager, so this might be a place to look into. Mr. Neilsen agreed and then talked about having panel discussions with local officials as well as state officials. He called it a resource for the community.

Auditors

Bob Vachon and Tammy Webb, Vachon Clukay & Company PC, Certified Public Accountants, showed a PowerPoint presentation regarding the Audit Report for the year ended June 30, 2016.

- Independent Auditor's Report
 - The City received an Unmodified Opinion on its financial statements for all of the reporting units as of and for the year ended June 30, 2016
- General Fund Budget and Actual Comparison
 - End result is a favorable increase in fund balance over the estimated amounts by \$982,000
- Budgetary Fund Balance
 - Unassigned General Operations \$4,575,363
 - The City's fund balance policy is to strive to maintain an unassigned fund balance equal to 5-15% of the budgeted General Fund operating expenditures each fiscal year
- Net Pension Liability

- o The City's estimated share of the net pension liability is based on the total retirement contributions paid into the plan as a percentage of ALL retirement contributions from NH municipalities during the fiscal year
 - o The City's net pension liability increased by \$1.4 million to \$11.2 million
- Water Fund
 - o Net loss of \$247,000 on accrual basis
 - o Decrease in cash flows of \$363,000
 - o Water rate study was done in the fall of 2016 and the Council approved a rate increase. VC&C commended the Finance Department and the City Council for addressing the issue.
- Federal Compliance Audit
 - o No deficiencies or weaknesses identified
 - o City received an Unmodified Opinion on its Federal Compliance Audit
- Governance communication
 - o No unusual issues were discussed prior to VC&C's retention as auditors
 - o Separate management letter was issued
 - The tax collector's office did not notify the Registry of Deeds of tax redemptions within the proper time frame as required by State law
 - Notification of tax lien redemptions is required within 30 days
 - Recommend submitting the necessary paperwork on a bi-monthly basis

Bernie Folta, Ward 3, questioned the over \$900,000 underexpenditure. Mr. Vachon said \$900,000 on a \$15 million budget is not unreasonable.

Motion to Allow SCATV Club to Replace Culvert on Class VI Portion of Cat Hole Road

Dianne Harlow, Ward 3 resident and Sullivan County ATV (SCATV) Club member said over years of use, a culvert on Cat Hole Road has developed a hole and the Club would like permission to repair it. The repair will cost the Club \$484.

Mr. McNutt said there will be no ongoing maintenance of the culvert done by the City. Ms. Harlow said it would be done by the Club.

Ms. Taylor said the reason the Club is doing the maintenance is because it is a Class VI road and the City does not maintain Class VI Roads.

Ms. Harlow said that it is one of their main trails.

A motion was made by Mr. Raymond and seconded by Mr. Damren that

WHEREAS, a certain portion of Cat Hole Road has been designated as a Class VI road and has not been maintained for travel by the City for a period in excess of 50 years; and

WHEREAS, the Sullivan County ATV Club (SCATV Club) has requested permission to replace a broken culvert, which is a hazard to the public, on the Class VI portion of Cat Hole Road;

The Claremont City Council hereby authorizes the SCATV Club, at its sole cost and expense, including all labor and materials, and subject to any state or local permits, to take such actions as may be necessary to replace the broken culvert on the Class VI portion of Cat Hole Road; and

As conditions for granting this authorization, the SCATV Club will:

- 1. Execute a release of liability to the City resulting from SCATV Club activities related to the culvert replacement; and**
- 2. Upon completion of the culvert replacement, provide documentation to the City's Highway Department regarding the location, the specifications of the culvert and pictures of the completed installation and headwalls.**

Mr. Koloski thanked the Club.

Mr. Temple asked how far up Cat Hole this was. Ms. Harlow said almost to the top.

Voice vote: motion carried 7-0.

Resolution 2017-34 Accept and Expend Homeland Security Grant for EMS Warm Zone Equipment – Public Hearing

The City of Claremont has received notice that the City has been awarded a Homeland Security Program Grant (the "Grant") from the New Hampshire Department of Safety, Division of Homeland Security (the "State") in the amount of \$6,000.00 for the purchase of EMS Warm Zone Equipment. The City voted to accept the Grant on February 22, 2017. The City would like to expend these grant funds for their intended purpose. This is to raise, appropriate and expend the sum of \$6,000.00, to be reimbursed by Grant funds (to have no impact on the tax rate) for the purpose of the purchasing EMS Warm Zone Equipment.

Fire Chief Rick Bergeron said this is a \$6,000 grant with no matching funds.

A motion was made by Mr. Damren and seconded by Ms. Towle to adopt Resolution 2017-34 Accept and Expend Homeland Security Grant for EMS Warm Zone Equipment.

Mr. Damren read the resolution into the record.

Mr. Bergeron opened the public hearing. No one spoke. He closed it.

Roll call vote: motion carried 7-0.

Resolution 2017-36 Primex³ Workers' Compensation Multi-Year CAP Program – Public Hearing

The City participates in a membership agreement with Primex³ to provide risk management and workers' compensation coverage for the City's workers' compensation loss exposures. Based on the City's participation in the Workers' Compensation Program, Primex³ has offered the City a

CAP of a maximum 8% increase in its contribution rates over the preceding year through the 2020 participation year. The City is legally required to carry workers' compensation coverage. The CAP Agreement includes a non-appropriation clause. This is to accept the offer of the New Hampshire Public Risk Management Exchange (Primex³) to enter into its Workers' Compensation Contribution Assurance Program (CAP) as of the date of the adoption of this resolution, and to be contractually bound to all of the terms and conditions of Primex³ risk management pool membership during the term of the Workers' Compensation Contribution Assurance Program and that the coverage provided by Primex³ in each year of membership shall be as then set forth in the Primex³ coverage documents.

Ms. Taylor explained that this and the next resolution were voted on at the last meeting. There should have been six Councilors present to vote to suspend the Rules, but there were only five. She spoke with Primex and they said to do the resolutions again. The dates and the resolution numbers have been changed, so other than that, these are the same.

A motion was made by Mr. Raymond and seconded by Mr. Damren to adopt Resolution 2017-36 Primex3 Workers' Compensation Multi-Year CAP Program.

Mr. Raymond read the resolution into the record.

Mr. Bergeron opened the public hearing. No one spoke. He closed it.

Roll call vote: motion carried 7-0.

Resolution 2017-37 Primex³ Property & Liability Multi-Year CAP Program – Public Hearing

The City participates in a membership agreement with Primex³ to provide risk management and public entity coverage for the City's property and liability loss exposures. Based on the City's participation in the Property and Liability Program, Primex³ has offered the City a CAP of a maximum 7% increase in its contribution rates over the preceding year through the 2020 participation year. The City is legally required to carry insurance coverage or its equivalent. The CAP Agreement includes a non-appropriation clause. This is to accept the offer of the New Hampshire Public Risk Management Exchange (Primex³) to enter into its Property-Liability Contribution Assurance Program (CAP) as of the date of the adoption of this resolution, and to be contractually bound to all of the terms and conditions of Primex³ risk management pool membership during the term of the Property-Liability Contribution Assurance Program and that the coverage provided by Primex³ in each year of membership shall be as then set forth in the Primex³ coverage documents.

A motion was made by Mr. Pope and seconded by Ms. Towle to adopt Resolution 2017-37 Primex3 Property & Liability Multi-Year CAP Program.

Mr. Pope read the resolution into the record.

Mr. Bergeron opened the public hearing. No one spoke. He closed it.

Roll call vote: motion carried 7-0.

NEW BUSINESS

Resolution 2017-35 Accept and Expend NHDES Local Water Source Protection Grant – Public Hearing

The City Council by motion approved on October 8, 2016, authorized the City Manager, or his designees, to apply for a New Hampshire Department of Environmental Services (NHDES) Local Source Water Protection Grant (the "Grant") for the purpose of making improvements to the security of the City's water supply infrastructure at the Dole and Whitewater Reservoirs (the Project). The City has been awarded the Grant in the amount of \$5,348.00 to undertake the Project and the City would now like to accept and expend the Grant funds for their intended purpose. This authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept the Grant in the amount of \$5,348.00 from the NHDES.

Ms. Taylor said there is fencing around part of the reservoirs. The backside of Dole Reservoir is not fenced. This grant will also fund improvements to security and signage.

A motion was made by Mr. Raymond and seconded by Mr. Damren to adopt Resolution 2017-35 Accept and Expend NHDES Local Water Source Protection Grant.

Mr. Raymond read the resolution into the record.

Mr. Bergeron opened the public hearing. No one spoke. He closed it.

Roll call vote: motion carried 7-0.

Preservation and Display of Historical Claremont Artifacts Discussion

Moved to 3/22 Council meeting.

COMMITTEE REPORTS

Mr. Pope said the School Board will create a strategic plan and then pass it on to the Council.

Mr. Pope said the Historic District Commission is doing its Master Plan work.

Mr. Bergeron said the Policy Committee will look into the procedure for naming City-owned properties. Some communities in NH choose not to name properties unless they absolutely have to. The next meeting of Policy Committee will be on March 13th. The Policy Committee will start work on the Licensing Board and the alcohol permitting system.

Mr. Damren asked if the City Manager could arrange a tour of the Community Center for the Council as the Community Center may ask for a full-time maintenance person and he wants to see what hasn't been done.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Temple asked if there would be one budget or would the CIP (Capital Improvements Plan) be separate. Mr. McNutt said the City operational budget and CIP budget would be separate.

Mr. Koloski said the area along the river by the former Sullivan smoke stack had been closed off and marked No Trespassing. He said there is a concrete slab in a dangerous condition and there are people who hang out underneath it. He would like to tour the area to look for development potential.

Mr. Koloski would like an update on the gas plant clean up. Ms. Taylor said we are waiting for spring because they have to do more planting. A historic display will be constructed. EPA (Environmental Protection Agency) still has more testing to do. Council has approved the deed, agreement, and transfer. It will probably be a couple of years before Council will be able to decide it wants to do something with it. Amerigas will have a year to look after it after the EPA signs off on it.

Mr. Raymond asked about EPA monitoring. Ms. Taylor said there will be monitoring wells there for a long time. Amerigas agreed to pay for it for the first 5 years.

Mr. Koloski thinks it would be a good opportunity for the City Manager to see the area. It's been discussed on the Master Plan Steering Committee and through surveys about opening up river access and better utilize that asset. The new park (lower section) has been vandalized. He would like to address it. He would like to address the stack regarding City liability.

There was a discussion about the area being an attractive nuisance and that 12-15 years ago there was a plan for a walkway for City use in that area.

Ms. Towle asked for an update on the Sugar River Drive burned out property. Ms. Taylor said a demolition permit has been pulled.

Mr. Temple asked for an update before the budget, or at the end of April, to refresh memories of on-shelf projects at Public Works (plans that are 60-90% complete).

Mr. Bergeron asked for an update on the church. Ms. Taylor said the covenants have been released. Planning and Development Director Nancy Merrill is putting together an RFP. Mr. Bergeron would like an update at the next meeting.

Mr. Koloski asked about putting up a banner reminding people to vote.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:43 p.m., a motion was made by Mr. Damren and seconded by Mr. Temple to adjourn.

Voice vote: motion carried 7-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council